



केन्द्रीय प्रदूषण नियंत्रण बोर्ड
CENTRAL POLLUTION CONTROL BOARD
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय, भारत सरकार.
MINISTRY OF ENVIRONMENT, FOREST & CLIMATE CHANGE, GOVT. OF INDIA.

F. No. CP-20/94/2021-UPC-II-HO-CPCB-HO

June 25, 2026

To

The Member Secretary,
(As per table 1),

Directions under Section 5 of the EPA, 1986 regarding compliance of various provisions under Schedule-II of Plastic Waste Management Rules, 2016, i.e., Guidelines on Extended Producer Responsibility (EPR)

WHEREAS, the Ministry of Environment, Forest & Climate Change (MoEF&CC) has notified Plastic Waste Management Rules (PWM), 2016, in exercise of the powers conferred under sections 3, 6 & 25 of the Environment (Protection) Act, 1986 vide Notification No. G.S.R 320 (E) dated March 18, 2016; and

WHEREAS, Guidelines for Extended Producers Responsibility (EPR) for Plastic packaging were notified by MoEF&CC on February 16, 2022 as Schedule-II of the PWM Rules, 2016; and

WHEREAS, as per Section 6.1(a) of the EPR Guidelines, the following entities shall register on the centralized portal developed by Central Pollution Control Board namely: (1) Producer (P); (ii) Importer (1); (i) Brand owner (BO), (iv) Plastic Waste Processor engaged in (a) recycling, (b) co-processing (c) waste to energy, (d) waste to oil, and (e) industrial composting; and

WHEREAS, as per Section 12.4 of EPR Guidelines, Central Pollution Control Board (CPCB) by itself or through a designated agency shall verify compliance of Producers, Importers & Brand-Owners (PIBOs) through inspection and periodic audit, as deemed appropriate. CPCB, as required, can also verify compliance of Plastic Waste Processors (PWPs) through inspection and periodic audit. In case of plastic waste processors and Producers, Importers & Brand-Owners operating in a State or Union Territory, CPCB may, if required, direct State Pollution Control Board or Pollution Control Committee (SPCB/PCC) to take action; and

WHEREAS, as per Section 13.1 of EPR Guidelines, the concerned SPCB/PCC shall register PIBOs (operating in one or two states) and plastic waste processors, through the online portal developed by CPCB. Provision for registration shall be made on the EPR portal. SPCB or PCC by itself or through a designated agency shall verify compliance of PIBOs through inspection and periodic audit, as deemed appropriate, of PIBOs as well as PWPs in their jurisdiction as per the PWM Rules, 2016; and

WHEREAS, as per Section 11.6 of the EPR Guidelines, the pro forma for the certificate shall be developed by CPCB. In no case, the amount of plastic packaging waste

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o/c

recycled by the enterprise shall be more than installed capacity of the enterprise. The certificates will be for plastic packaging category-wise and shall include GST data of the enterprise; and

WHEREAS, as per section 9.1 of the EPR Guidelines, Environmental Compensation (EC) shall be levied based upon polluter pays principle, with respect to non-fulfilment of EPR targets by PIBOs, for the purpose of protecting and improving the quality of the environment and preventing, controlling and abating environment pollution"; and

WHEREAS, as per section 9.2 of the EPR Guidelines, CPCB shall lay down guidelines for imposition and collection of EC on PIBOs, recyclers and end of life processors, in case of non-fulfilment of obligations set out in these guidelines, and the same shall be notified. The Guidelines for Environmental Compensation shall be updated, as required"; and

WHEREAS, CPCB has prepared the EC guidelines as per the provision of EPR guidelines and PWM Rules, 2016, as amended; and

WHEREAS, as per revised guidelines for assessment of EC prepared by CPCB, EC is to be levied considering the category wise shortfall in EPR target, as Cat I: Rs.2900/T; Cat II: Rs.5000/T, Cat III & IV: Rs.7900/T; and

WHEREAS, as per section 9.4 of the EPR Guidelines, the EC, as applicable, shall be levied by respective SPCB/PCC on the PIBOs operating in their jurisdiction (for PIBOs not operating in more than two states/Union Territory's), PWPs which includes recyclers and other waste processors – waste to energy, waste to oil, co-processors, with respect to non-fulfilment of their EPR targets or responsibilities and obligations set out under these guidelines; and

WHEREAS, CPCB issued Directions dated 21.12.2022 to all PWPs to upload GST e-Invoice of all transactions related to plastic packaging. However, it was observed that all PWPs operating in your jurisdiction were not uploading GST E-Invoice of the transactions related to plastic packaging which is in non-compliance of aforementioned CPCB's Directions; and

WHEREAS, CPCB issued following Directions dated 20.11.2023 to the SPCBs/PCCs:

1. *To take immediate necessary actions to improve upon the system of grant of registration within SPCB/PCC, monitoring and enforcement ensuring enforcement of the PWM Rules, EPR guidelines and directions/guidelines issued by CPCB, including the following:*
 - i. *To re-check processing facilities of Registered PWPs in your state and to confirm that the Processing capacity as per the Registration granted to them is in conformity with the actual facilities available in the unit. All other details*

provided in the online application form are also to be revalidated by SPCB/PCC.

- ii. To regularly monitor EPR Certificate generation process of the Registered PWPs ensuring that EPR Certificates generated by PWPs are in accordance with requirements prescribed in CPCB guidance manual such as uploading of GST E-invoice corresponding to the sales of finished on the EPR Portal.
- iii. If violations are observed as per (a) & (b) above, to conduct detailed enquiry into the issue of CTE and CTO and also as to how physical verification of the Unit was approved by SPCB/PCC, in view of the gross violations observed also as to why the process of generation of EPR Certificates was not monitored by SPCB/PCC.
- iv. To fix the liability on erring official/s and take disciplinary action against erring officials, if any, as per the findings of the enquiry set up, as at (c) above.

2. To take the following actions against the defaulting PWPs, if any, identified as per (1) above:

- i. To suspend the consent/authorization/registration issued to the defaulting PWPs, with immediate effect and issue show cause notice to debar such PWPs from operating under the Extended Producer Responsibility framework for a period of one year as per Clause 11.4 of the EPR Guidelines or/ and for revocation of the consent/authorization/registration issued to the Unit;
- ii. To levy Environmental Compensation (EC), corresponding to the quantum of EPR certificates generated not in conformity with requirement prescribed in CPCB Guidance manual for operating Centralized EPR Portal. The EC is to be levied as per "Guidelines for Assessment of Environmental Compensation to be levied for violation of PWP Rules" (https://cpcb.nic.in/uploads/plasticwaste/EC_Regime_PWM.pdf) and Unit be directed to deposit the same in the designated Escrow Account, created by the SPCB/PCC for the purpose.
- iii. To take necessary action as per applicable law against violating PWPs which have submitted false documents for obtaining registration as well as for generating EPR certificates. It may further be ensured that action taken by SPCB/PCC regarding these units should act as a deterrent for other Units in committing such violations.

3. *To take all necessary steps to ensure that PWPs henceforth complies with all conditions including generating GST E-invoice for all sales of only finished products and uploads the same on the EPR Portal, failing which necessary action be immediately taken including levying of EC against each noncomplying Unit.*

WHEREAS, CPCB has developed the Audit app and web module for the purpose of conducting audit of registered PWPs with the provision for online submission of reports by auditors; and

WHEREAS, CPCB has also developed the 'Standard Operating Procedure (SOP)' for conducting audit of registered PWPs' for assistance and guidance to auditors; and

WHEREAS, in EPR Certificates of the order of 172.9 Lac Tons have been generated till date, of which EPR Certificates of (as per Table 1) Tons have been generated by (as per Table 1) registered PWPs in your state/UT; and

WHEREAS, in view of aforementioned points, it has been decided to monitor the PWP operations and conduct audit of all PWPs which have generated EPR Certificates; and

WHEREAS, CPCB had issued following Directions dated 12.11.2024 to the SPCBs/PCCs:

1. *To immediately complete audit of the PWPs as assigned vide above mentioned letter dated 02.08.2024 in line with the SOP for conducting audit of registered PWPs.*
2. *To submit the report duly approved by Member Secretary of the SPCB on the audit web module within 10 days of issuance of this direction.*
3. *To submit Action taken report w.r.t. above mentioned directions dated 20.11.2023 issued by CPCB.*

WHEREAS, CPCB has made provisions on the EPR portal to strengthen the process of generation of EPR certificates by PWPs, whereby GST e-Invoices pertaining to plastic products may be uploaded only upon successful verification of the submitted details with the GSTN portal. An instruction sheet detailing the procedure for uploading of GST e-Invoices for sale of products by PWPs is available on the EPR Portal; and

WHEREAS, CPCB had also issued directions dated 14.01.2025, 21.02.2025 and 08.04.2025 (as applicable for respective SPCB/PCC) to the concerned SPCB/PCC regarding the findings of the audit of PWPs and for taking necessary actions on the defaulting units according to the provisions of EPR guidelines and PWM Rules, 2016, as amended; and

WHEREAS, Action Taken Report (ATR) from your SPCB/PCC corresponding to all units mentioned in the directions issued dated 20.11.2023, 12.11.24, 14.01.2025,

21.02.2025 and 08.04.2025 (as applicable for respective SPCB/PCC) has not been received; and

WHEREAS, Audit of 85 PWPs were conducted by the officials of CPCB/SPCB/PCC/or empanelled third party auditors in your State/UT. The observations from the audit reports reveal violations serious in nature and the same for each of the said 85 PWPs are provided at Annexure I. The copies of the corresponding Audit report(s) are also enclosed for ready reference; and

WHEREAS, as precautionary measure, the operations for generation and transfer of EPR certificates have been disabled/blocked on the EPR portal by CPCB for 85 nos. PWPs due to observed violations serious in nature; and

WHEREAS, in view of the aforementioned points, it is essential to correlate the quantum of EPR Certificates generated not in conformity with the provisions of EPR guidelines and take necessary action against the defaulting units to ensure that authentic EPR certificates are generated in accordance with the actual plastic waste being processed by the units;

WHEREAS, the operations of such 85 PWPs shall resume only upon verification of the submitted ATR by concerned SPCB/PCC to CPCB, thereby ensuring that only compliant PWPs generate or transfer EPR certificates on the EPR portal for the plastic packaging waste processed by them; and

NOW THEREFORE, in view of above and in exercise of the powers vested to Chairman, Central Pollution Control Board (CPCB) vide Notification No. S.O.730 (E) dated July 10, 2002 notified as per provisions of Section 5 of the Environment (Protection) Act, 1986, the following directions are being issued for compliance:

1. To submit reasons for non-submission of Action Taken report for the Directions issued by CPCB dated 20.11.2023, 12.11.2024, 14.01.2025, 21.02.2025 and 08.04.2025 (as applicable for respective SPCB/PCC).
2. To take necessary action against the defaulting PWPs as per findings of the Audit Reports (List of PWPs with respective observed violations along with respective audit reports is attached at Annexure I) in accordance with Directions dated 20.11.2023 and 12.11.2024 issued by CPCB.
3. Proportionate EC must be levied in case any of the following non-compliance is observed in the audit report:
 - i. Plant and Machinery not found on-site as per the details submitted in the Registration application or not appropriate for processing of plastic packaging waste.
 - ii. GST e-Invoices uploaded in <80% of all sale transactions declared on the portal, reckoned from the date GST e-invoices became mandatory (i.e. vide

direction 21.12.2022 for Plastic Packaging, or forged/cancelled/invalid sale GST e-invoice has been found to be uploaded on the EPR Plastic Portal.

- iii. Observed deficit in actual processing capacity is > 20% of the capacity implied by EPR certificates generated, as assessed by operating the plant during audit.
 - iv. Observed deficit in actual power consumption is >20% relative to expected power consumption corresponding to the production quantities claimed, as assessed by operating the plant during audit.
 - v. Invalid EPR certificates generated or transferred corresponding the non-compliances observed in point no. (ii-iv) above or EPR Certificates generated not in conformity with the provisions of EPR guidelines.
4. EC waiver may be given in respect of deficit of upto 20% in (iii) and (iv) above considering errors/benefit of doubt in assessing the capacity/electricity consumption during the audit assessment.
5. Further, the EC waiver may also be considered for non-uploading of GST e-invoice (but have uploaded manually generated GST) subject to the condition that such PWP's must register on the GST Portal for the purpose of generation of GST E-Invoice within 15 days of issue of the proposed Directions and also that:
- a. Plant and Machinery is in conformity with the details submitted in the Registration application or found appropriate for processing of plastic packaging waste;
 - b. Details of sales of such uploaded manual GST invoice as proof of sale of finished product on the EPR Plastic Portal is found to be in order;
 - c. Deficit in processing capacity (as assessed in the audit by actually operating the plant) which is within 20% of the Registered capacity (as per the Registration application) and expected power consumption of the products for which EPR certificate has been generated
 - d. Deficit in power consumption bill corresponding to total productions claimed is within 20% of the consumption bill as assessed during audit by actually operating the plant.
 - e. Valid EPR certificates have been generated as per the verified sales declared in the manual GST invoice uploaded as proof of sale of finished product on the EPR Plastic Portal.

EPR certificate generation & transfer of the aforesaid 85 PWP's have been blocked on the CPCB EPR portal in view of the serious nature of violation observed during the

audit. Unblocking of the same shall be considered upon receipt of the aforesaid action taken report.

You are hereby directed to take necessary action for compliance of aforesaid directions and submit the action taken report (including Unit-wise details of EPR Certificates generated not in conformity with the requirement prescribed in CPCB Guidance manual & EC levied, status of suspension/revocation of consent/ registration and issuance of closure direction with respective period of debarring from EPR Framework, necessary action as per applicable law against violating PWPs which have submitted false documents, etc., as applicable) to this office within 15 days of receipt of this direction.


(Amandeep Garg)
Chairman

Copy to:

- (i) The Chairman of the respective: For kind information and ensuring compliance of the above direction, please
- SPCB/PCC:
1. Assam
 2. Bihar
 3. Delhi
 4. Gujarat
 5. Karnataka
 6. Madhya Pradesh
 7. Maharashtra
 8. Rajasthan
 9. Tamil Nadu
 10. Telangana
 11. Uttar Pradesh
 12. Uttarakhand
- (ii) The Joint Secretary (HSMD), : For kind information, please
Indira Paryavaran Bhawan,
MOEF&CC
Jor Bagh Road, Ali Ganj,
New Delhi, 110003
- (iii) The concerned RD of CPCB: : For follow up with concerned SPCB/PCC ensuring compliance of the above direction, please
1. Regional Directorate – Bhopal
 2. Regional Directorate – Bengaluru
 3. Regional Directorate – Chandigarh

4. Regional Directorate –
Chennai
5. Regional Directorate –
Lucknow
6. Regional Directorate – Pune
7. Regional Directorate –
Shillong
8. Regional Directorate –
Vadodara



(Bharat Kumar Sharma)
Member Secretary



Table 1: Certificate generated by registered PWPs by 12 States/UTs

Sl. No	State/UT	Certificate generated (Tonnes)	Registered PWPs
1	ASSAM	18298	14
2	BIHAR	209525	14
3	DELHI	1779442	82
4	GUJARAT	1439182	241
5	KARNATAKA	238729	72
6	MADHYA PRADESH	1253797	83
7	MAHARASHTRA	892836	144
8	RAJASTHAN	1341672	69
9	TAMIL NADU	606150	39
10	TELANGANA	1788501	36
11	UTTAR PRADESH	4557392	148
12	UTTARAKHAND	391693	60

